

Moved by Nichols

Seconded by Kohl

IN THE SENATE
SENATE AMENDMENT TO S.B. NO. 1270

AMENDMENT TO SECTION 1

On page 1 of the printed bill, in line 13, delete "ALTERNATIVE" and insert: "CELL-CULTIVATED"; delete lines 14 through 21, and insert:

"37-1601. DEFINITIONS. As used in this chapter, "cell-cultivated animal protein" means any animal cell-based food product produced or derived from culturing animal cells outside of the animal's body, which may be referred to as "lab-grown meat," "cultivated meat," "cell-cultured meat," or "fake meat."";

in line 22, delete "ALTERNATIVE" and insert: "CELL-CULTIVATED"; in line 23, delete "alternative" and insert: "cell-cultivated"; delete lines 25 and 26, and insert: "\"lab-grown,\" \"cell-cultivated,\" or \"cell-cultured.\""; in line 31, delete "alternative" and insert: "cell-cultivated"; and delete lines 34 through 37, and insert:

"(4) A cell-cultivated animal protein product that is not derived from traditional livestock production or wild game harvest shall not be labeled, advertised, or marketed using terms commonly associated with specific meat cuts, including but not limited to "steak," "roast," "tri-tip," "loin," or "brisket," unless otherwise authorized by the United States department of agriculture.".

On page 2, delete lines 8 and 9, and insert:

"(2) No civil penalty shall be assessed for a violation that is the result of a good-faith error, provided the violation is promptly corrected upon notice by the department.

(3) Enforcement under this section shall be directed to the manufacturer, producer, or person who labels or markets the cell-cultivated animal protein product, and not to a retailer or food establishment that does not alter the product labeling.";

and in line 10, delete "(3)" and insert: "(4)".

CORRECTION TO TITLE

On page 1, in line 2, delete "ALTERNATIVE" and insert "CELL-CULTIVATED"; and in line 5, delete "ALTERNATIVE" and insert "CELL-CULTIVATED".